

25STCV13940 25STCV13940

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV13940 Hearing Date: June 30, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

REGINALDO JOLON LOPEZ,

individuall and as trustee of the reginaldo jolon lopez living trust, dated
october 25, 2018

;

Plaintiff,

vs.

ricardo a. gonzales

, et al.;

Defendants.

Case

No.:

25STCV13940

Hearing

Date:

June

30, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

demurrer to complaint

MOVING PARTY: Defendant Home Mortgage
Corporation dba Jet Mortgage

RESPONDING PARTY: Plaintiff Reginaldo Jolon Lopez

Demurrer to Complaint

The court

considered the moving, opposition, and reply papers filed in connection with
this demurrer.

DISCUSSION

Defendant Home Mortgage Corporation dba Jet Mortgage ("Defendant") demurs
to plaintiff Reginaldo Jolon Lopez's ("Plaintiff") Complaint and to each cause
of action alleged therein on the grounds that each cause of action fails to
state facts sufficient to constitute a cause of action and is uncertain.

The court overrules Defendant's demurrer to the Complaint on the
ground of uncertainty because the Complaint is not uncertain as it is neither
ambiguous nor unintelligible. (Code Civ.

Proc., § 430.10, subd. (f).) It is clear

that the Complaint makes allegations that Plaintiff entered into a loan,
provided by Defendant (Compl., ¶¶ 13-14), Plaintiff never received the proceeds
from that loan (Compl., ¶ 13), and now, Plaintiff (1) seeks to cancel the deed

of trust that secured the loan (Compl., ¶¶ 12, 16-19), (2) seeks a declaration ordering Defendants to remove, cancel, and/or retract the deed of trust by recording an effective quitclaim deed or reconveyance to relinquish any interest purportedly held by Defendants (Compl., ¶ 24), (3) alleges that Defendants misrepresented to Plaintiff that the loan proceeds would be transferred to Plaintiff upon the close of escrow on the loan (Compl., ¶ 27), (4) alleges that Defendants are liable for financial elder abuse for taking, secreting, appropriating, obtaining, and/or retaining Plaintiff's property through the fraudulent deed of trust or the theft of the loan proceeds, for a wrongful use or with intent to defraud (Compl., ¶ 35), and (5) Defendants took possession of the loan proceeds without Plaintiff's consent (Compl., ¶¶ 44-45). (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, ["[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond"] [internal citations and quotations omitted].)

The court sustains Defendant's demurrer to the first cause of action for cancellation of instrument because it does not state facts sufficient to constitute a cause of action since Plaintiff has failed to allege that the deed is void or that the deed is voidable because there was a fraudulent misrepresentation. (La Jolla Group II v. Bruce (2012) 211 Cal.App.4th 461, 477 ["A deed is void if the grantor's signature is forged or if the grantor is unaware of the nature of what he or she is signing. [Citation.] A voidable deed, on the other hand, is one where the grantor is aware of what he or she is executing, but has been induced to do so through fraudulent misrepresentations"].) Plaintiff makes no allegations that his signature was forced or that he was unaware of the nature of what he was signing. In addition, as discussed further below, Plaintiff fails to allege specific facts to show that Defendant or one of its agents made any false representations.

The court sustains Defendant's demurrer to the second cause of action for declaratory relief because Plaintiff seeks declaratory relief regarding the rights, title, and interests with respect to the real property located at 1806 S. Harvard Blvd, Los Angeles, California 90006 ("Property") as it relates to the deed of trust, but Plaintiff has not stated facts sufficient to constitute a cause of action regarding the Property or the deed of trust at issue. (Compl., ¶ 11, 23.) (Code Civ. Proc., § 1060; Lee v. Silveira (2016) 6 Cal.App.5th 527, 546 ["To qualify for declaratory relief under section 1060, plaintiffs were required to show their action (as refined on appeal)

presented two essential elements: '(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.' . . . 'The "actual controversy" language in ... section 1060 encompasses a probable future controversy relating to the legal rights and duties of the parties'" [internal citation omitted].)

The court sustains Defendant's demurrer to the third cause of action for fraud because it does not state facts sufficient to constitute a cause of action since Plaintiff has not alleged facts, with the requisite particularity, establishing that one of Defendant's agents or employees made a misrepresentation to Plaintiff that induced his reliance and as a result he entered into the loan agreement. (Compl. ¶¶ 27, 28.) (Code Civ. Proc., § 430.10, subd. (e); *Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1245 ["The elements of intentional misrepresentation 'are (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage'"]; *Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294–295 ["Fraud in the inducement is a subset of the tort of fraud. It occurs when the promisor knows what he is signing but his consent is induced by fraud, mutual assent is present and a contract is formed, which, by reason of the fraud, is voidable"] [internal quotations omitted]; *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645 ["This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered"] [internal citation and quotations omitted]; *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157 ["The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written"].)

The court sustains Defendant's demurrer to the fourth cause of action for financial elder abuse because it does not state facts sufficient to constitute a cause of action since Plaintiff has not alleged, with the requisite particularity, facts establishing that Defendant took, obtained, retained, or assisted in taking, secreting appropriation or retaining the property of Plaintiff, as it is unclear what property Plaintiff is referring to (Compl., ¶ 35), and Plaintiff fails to allege, with the requisite particularity, what the wrongful use is or Defendant's intent to defraud. (Code Civ. Proc., § 430.10, subd. (e); *Wel. & Inst. Code*, § 15610.30, subd. (a)(2); *Carter v. Prime*

Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 410 [where “statutory remedies are invoked, the facts ‘must be pleaded with particularity’”]; *Stebly v. Litton Loan Servicing, LLP* (2011) 202 Cal.App.4th 522, 528 [“It is simply not tortious for a commercial lender to lend money, take collateral, or to foreclose on collateral when a debt is not paid.... [A] commercial lender is privileged to pursue its own economic interests and may properly assert its contractual rights[.]”] Though Plaintiff may also plead wrongful use by alleging that Defendant “knew or should have known that this conduct is likely to be harmful to the elder or dependent adult” Plaintiff failed to make these allegations as well. (Welf. & Inst. Code, § 15610.30, subd. (b).)

The court sustains Defendant’s demurrer to the fifth cause of action for conversion because, although Plaintiff has stated ultimate facts sufficient to constitute a cause of action for conversion against all defendants (Compl., ¶¶ 12, 43-46), this is contradicted by Plaintiff’s allegation that defendant Ricardo A. Gonzalez DBA Citywide Elite Realty failed and refused to transfer the loan proceeds to Plaintiff upon the close of escrow on the Loan. (Compl., ¶ 50.) (Code Civ. Proc., § 430.10, subd. (e); *Regent Alliance Ltd. v. Rabizadeh* (2014) 231 Cal.App.4th 1177, 1181 [elements of conversion]; *Voris v. Lampert* (2019) 7 Cal.5th 1141, 1151 [“[A]lthough our law has dispensed with the old requirement that ‘each coin or bill be earmarked,’ it remains the case that ‘money cannot be the subject of an action for conversion unless a specific sum capable of identification is involved’”]; *Ibid.* [“[A] cause of action for conversion of money can be stated only where a defendant interferes with the plaintiff’s possessory interest in a specific, identifiable sum”; ‘the simple failure to pay money owed does not constitute conversion’”]; *Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1235–1236 [“Where a pleading includes a general allegation, such as an allegation of an ultimate fact, as well as specific allegations that add details or explanatory facts, it is possible that a conflict or inconsistency will exist between the general allegation and the specific allegations. To handle these contradictions, California courts have adopted the principle that specific allegations in a complaint control over an inconsistent general allegation”].) Thus, Plaintiff alleges that it was defendant Ricardo A. Gonzalez DBA Citywide Elite Realty who converted the loan proceeds, not Defendant. In addition, Plaintiff fails to allege sufficient facts to plead conspiracy because Plaintiff only alleges that each defendant acted as a conspirator of each of the other defendants

(Compl., ¶ 8) without alleging that Defendant had knowledge of and agreed to both the taking of the loan proceeds in general, and defendant Ricardo A. Gonzales DBA Citywide Elite Realty refusing to transfer the loan proceeds at the close of escrow. (Berg & Berg Enterprises, LLC v. Sherwood Partners, Inc. (2005) 131 Cal.App.4th 802, 823 [“In order to maintain an action for conspiracy, a plaintiff must allege that the defendant had knowledge of and agreed to both the objective and the course of action that resulted in the injury, that there was a wrongful act committed pursuant to that agreement, and that there was resulting damage”].)

Although Defendant demurs to the sixth cause of action, Plaintiff has not alleged the sixth cause of action against Defendant. (Notice of Demurrer, p.4:1-4; Compl., p.7:18-20.)

ORDER

The court sustains defendant Home Mortgage Corporation dba Jet Mortgage’s demurrer to plaintiff Reginaldo Jolon Lopez’s first through fifth causes of action with leave to amend.

The court grants plaintiff Reginaldo Jolon Lopez 20 days leave to amend the first through fifth causes of action to cure the defects set forth in this order.

The court orders defendant Home Mortgage Corporation dba Jet Mortgage to give notice of this ruling.

IT IS SO ORDERED.

DATED: June 30, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court